Responsible Administrator: Provost
Responsible Office: Provost
Effective Date: 06/22/2020
Approved by: Academic Affairs Council
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Termination/Severe Sanction of Tenured Faculty Policy

Policy Statement

Faculty at Southeastern enjoy academic freedom in their teaching and research. Any action recommended by the department head, dean, or Provost against a tenured faculty member under the Termination/Severe Sanction for Cause policy described herein shall not infringe upon the special privilege of academic freedom or the ordinary rights afforded every citizen.

Purpose of Policy

This policy describes expectations for the professional conduct of tenured faculty along with the sanctions that may be imposed for inappropriate conduct. These guidelines align with the AAUP's (American Association of University Professors) Statement on Professional Ethics.

Applicability

This policy applies to all tenured faculty.

Policy Procedure

While tenure helps ensure the privilege of academic freedom, it carries with it a special obligation to the institution and community. Accordingly, tenured faculty may be subject to termination or other severe sanction, such as demotion in rank or reduction in pay, as deemed appropriate under the circumstances. Insofar as termination or other severe sanction is concerned, cause shall consist of conduct seriously prejudicial to the University. Such conduct would include infraction of law or commonly accepted standards of professional ethics or morality; violation of the University Policy on Academic Freedom and Professional Responsibility; incompetence; insubordination; violation of the rules of the institution or governing boards; or any activity or condition that would place the institution, its employees or students in serious peril, or serve to prevent or impair a faculty member's ability to discharge the normal obligations of employment. The foregoing enumeration of cause shall not be deemed exclusive. Any severe sanction against a faculty member should be commensurate with the particular infraction giving rise to the sanction.

Professional Ethics

As described in the AAUP's (American Association of University Professors) Statement on Professional Ethics, faculty should conduct themselves in such a manner as to hold before their students and colleagues the best scholarly and ethical standards of their discipline. They should demonstrate respect for students as individuals, foster honest academic conduct and ensure that their evaluations of students reflect each student's performance. Faculty members should respect the confidential nature of their professional relationships with students. They should avoid any exploitation, harassment, or discriminatory treatment of students and formally acknowledge significant academic or scholarly assistance from them.

Collegial Behavior

An atmosphere of collegiality is an essential element in an academic environment. Accordingly, actions by faculty that serve to diminish significantly the atmosphere of collegiality may impair their own or others' ability to function in a

community of scholars. Specifically, faculty members should not discriminate against or harass faculty colleagues or other employees of the institution. They should show due respect for the opinions of others. Because faculty often play a critical role in peer evaluation, they should strive to be objective in their professional judgment of colleagues. In order for it to be a consideration, lack of collegiality must significantly impair their own or their colleagues' abilities to do their duties. When speaking or acting as private persons, faculty should avoid creating the impression of speaking or acting for their college or university.

Moral Behavior

Although the institution does not seek to impose specific standards of morality on its faculty, behavior or conduct constituting moral turpitude may be sufficient cause for termination or other sanction if it places the institution, its employees, or students in peril, or if it serves to prevent or impair a faculty member's ability to discharge the normal obligations of employment.

Incompetence and Insubordination

Minor instances of insubordination normally would be addressed through the annual evaluation process. However, in circumstances where a tenured faculty member is unable or unwilling to carry out the normal duties of employment, the faculty member may be subject to termination or other severe sanction.

University Level Faculty Review Panel

Any recommendation by the Provost to the President regarding termination or other severe sanction of a tenured faculty member shall be preceded by an appropriate review of the circumstances by a faculty review panel consisting of no fewer than five full-time tenured faculty members. The University's Tenure and Promotion Committee will serve in that role. Any vacancies on the Tenure and Promotion Committee at the time of the review would be filled by having the Executive Council of the Faculty Senate appoint individuals to serve in those vacancies for the purposes of the faculty review.

The panel will conduct hearings that shall conclude in a recommendation regarding the faculty member's termination or severe sanction. The panel's final report will include a narrative explaining the reasons for the panel's recommendation. At any time during the hearings, the faculty member may terminate the proceedings by negotiating a summary decision by the administration on a recommendation to the board.

The faculty member will receive no less than fifteen working days' notice prior to the beginning of the hearing. At the time of notice, the faculty member will be provided, in writing, the procedural issues related to the hearing, which shall be closed unless requested to be open by the faculty member. Both parties will have the right for a representative to be present at the hearings. Both parties will be given an opportunity to present witnesses or provide other evidence as desired.

The panel will submit its final report to the President, including a copy to the Provost, no more than fifteen working days after the conclusion of the hearing. The recommendation of the faculty review panel will be the final faculty position on the matter, and such should be given serious consideration in the Provost's recommendation to the President. Within fifteen days of receiving the panel's report, the Provost will make a recommendation to the President regarding termination or severe sanction of the faculty member. The President will make a final recommendation regarding termination or severe sanction of the faculty member to the Board within fifteen working days of receiving the Provost's recommendation. The faculty member will receive a copy of each report/recommendation as it is made.

[end of policy]